



State of New Jersey

DEPARTMENT OF ENVIRONMENTAL PROTECTION

Division of Watershed Protection

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FLOOD HAZARD AREA APPLICABILITY DETERMINATION

Flood Hazard Area Control Act Rules, N.J.A.C. 7:13

June 20, 2024

Ms. Cailean Kok
New Jersey Economic Development Authority
Division of Real Estate
One Gateway Center, Suite 1410
Newark, New Jersey 07102

Re: Flood Hazard Applicability Determination
File No. 1111-24-0001.1 APD 240001

Dear Ms. Kok,

This is in response to your letter received on June 12, 2024 concerning a property located in the vicinity of the Assunpink Creek and the Delaware River, within Lot No 1. of Block No. 1902, in the City of Trenton, Mercer County.

DECISION

A review of the submitted information indicates the property is not located in a flood hazard area.

REASON FOR DECISION

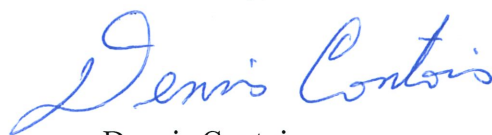
The Delaware River is a state and Federally studied stream. As per the FEMA flood study, the flood hazard elevation is 28.0 (25 +3) feet. The property in question is not located in the flood hazard area.

This letter does not relieve the applicant of the responsibility to obtain any Federal, State or local approvals that may be required, such as local building permits or freshwater wetlands approvals. This determination is based on a review of the information submitted by the applicant, and in accordance with the existing Flood Hazard Area Control Act rules. Therefore, this determination will become void if the project changes size, scope, location or impact, or if the Department determines that the submitted information is incomplete or inaccurate.

Pursuant to N.J.A.C. 7:13-5.1(f) and (g), this determination is valid for five years from the date of this letter, unless the Department amends N.J.A.C. 7:13 such that the proposed activity becomes regulated, or else the Department amends the flood hazard area or riparian zone onsite such that the proposed activity lies within one of these regulated areas. In such a case, this determination shall become void and the applicant shall obtain a new permit from the Department pursuant to N.J.A.C. 7:13-2.1 prior to commencing the regulated activities onsite.

Should you have any questions regarding this determination, please contact me at Dennis.Contois@dep.nj.gov or by telephone at (609) 633-6563.

Sincerely,



Dennis Contois
Supervising Engineer
Northern Engineering Section